

Sriram Dang v. State of U.P.

High Court of Judicature at Allahabad · Division Bench · 17 May 2012 · Writ-C No. 24394 of 2012 · **Writ disposed; Clause 4.4 application to be decided in a week.**

HEADNOTE

On a second writ after the landlady cut supply and a Clause 4.4 application under the 2005 Code sat undecided for over two and a half months, the Division Bench directed the competent authority to pass an appropriate order in accordance with law within a week of a certified copy being filed, expressly without deciding the petitioner's claim on merits.

FACTUAL SUMMARY

The landlady disconnected the petitioner's electricity. He first obtained an order dated 23 February 2012 in Writ-C No. 7909 of 2012 directing him to apply under Clause 4.4 of the U.P. Electricity Supply Code, 2005. He applied on 28 February 2012. After more than two and a half months with no decision, he filed this second writ. The Court directed respondent no. 2 to decide the application in accordance with law within a week, without ruling on merits.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::4.4

Clause 4.4 application — time-bound decision

HOLDING

A pending Clause 4.4 application for a new connection, left undecided for more than two and a half months after an earlier High Court direction to apply, is to be decided by the competent authority in accordance with law within a week of a certified copy being filed; the Court did not adjudicate entitlement on merits. ¶ 1

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — MERITS OF THE PETITIONER'S CLAIM TO A NEW CONNECTION UNDER CLAUSE 4.4

The Court expressly stated it had not adjudicated the petitioner's claim on merits. ¶ 1